

Introduction

These Customer Portfolio Terms and Conditions govern the commercial relationship between the Company and any customer who participates in the Customer Portfolio Program and are intended to establish a transparent framework for the purchase, use, management, and administration of products and services offered by the Company, including any future products, solutions, subscriptions, support offerings, upgrades, enhancements, and associated commercial engagements that may be introduced during the course of the business relationship, regardless of whether such offerings are delivered through direct channels, partner channels, digital platforms, or integrated marketplaces.

The Customer acknowledges that participation in the Customer Portfolio Program is voluntary and subject to the eligibility criteria established by the Company from time to time and that continued participation in the program may depend on commercial performance metrics, purchasing history, payment compliance, contractual obligations, regulatory considerations, and other operational requirements that the Company deems necessary for maintaining a productive and mutually beneficial business relationship while ensuring compliance with applicable commercial practices and industry standards.

Eligibility and Enrollment

To become eligible for inclusion within the Customer Portfolio Program, the Customer must provide complete and accurate registration information, including legal business name, principal address, contact details, tax identification information, authorized representatives, and any additional information reasonably required by the Company for the purpose of customer verification, risk assessment, compliance reviews, commercial planning, fraud prevention activities, and ongoing relationship management, and the Customer agrees to promptly notify the Company of any material changes affecting such information so that accurate records can be maintained throughout the duration of the relationship.

The Company reserves the right to independently evaluate applications for enrollment and may approve, reject, suspend, or terminate participation in the program based on business considerations, regulatory restrictions, operational risks, creditworthiness assessments, historical transaction patterns, documented violations of Company policies, or any circumstance that could potentially affect the integrity, security, operational efficiency, or commercial objectives of the Customer Portfolio Program.

Portfolio Benefits

Subject to compliance with these Terms and Conditions, eligible Customers may receive a variety of commercial benefits that may include preferential pricing structures, customized support arrangements, dedicated account management resources, invitations to participate in strategic planning discussions, access to pilot programs, priority consideration for newly released products and services, participation in loyalty initiatives, eligibility for incentive-based campaigns, and other value-added benefits designed to strengthen long-term collaboration and encourage sustainable business growth while supporting the Customer's operational and strategic objectives.

The Company may periodically review program performance, customer engagement levels, purchasing volumes, product adoption metrics, payment history, and other relevant factors in order to determine the applicability, continuation, expansion, reduction, modification, or withdrawal of any program benefits, and the Customer understands that participation in the program does not guarantee the availability of specific discounts, incentives, promotions, service levels, or commercial opportunities at any future date.

Commercial Terms

All pricing, fees, charges, discounts, credits, rebates, and financial incentives offered under the Customer Portfolio Program shall be determined in accordance with the applicable commercial agreements, order forms, quotations, pricing schedules, statements of work, service contracts, or other written documentation approved by the Company, and except where expressly stated otherwise, all prices shall be exclusive of applicable taxes, duties, levies, assessments, import charges, export restrictions, governmental fees, and other statutory obligations that may apply to the purchase, delivery, possession, licensing, consumption, or use of products and services.

The Customer agrees to make all payments in accordance with the payment terms specified in the applicable invoice or commercial agreement and acknowledges that failure to satisfy payment obligations within the prescribed period may result in suspension of benefits, withholding of services, cancellation of pending transactions, revocation of pricing

privileges, reassessment of credit terms, referral to collection procedures, or other reasonable business actions deemed necessary to protect the Company's financial interests and operational stability.

Confidentiality and Data Protection

During the course of the commercial relationship, each party may gain access to confidential information belonging to the other party, including but not limited to business strategies, pricing arrangements, customer data, technical specifications, software configurations, product roadmaps, operational methodologies, marketing initiatives, financial information, proprietary processes, research findings, trade secrets, and other commercially sensitive information that would reasonably be understood to require protection from unauthorized disclosure, use, duplication, distribution, publication, or exploitation.

Each party agrees to implement appropriate administrative, technical, organizational, and physical safeguards designed to protect confidential information from unauthorized access, misuse, accidental disclosure, destruction, alteration, or loss and further agrees not to disclose such information to third parties except where disclosure is required by law, regulation, judicial authority, governmental directive, or written authorization from the disclosing party, provided that reasonable efforts are undertaken to limit the scope of such disclosure whenever legally permissible.

Termination and Liability

The Company may terminate, suspend, or restrict participation in the Customer Portfolio Program at any time if the Customer breaches any provision of these Terms and Conditions, engages in fraudulent activities, violates applicable laws, fails to satisfy payment obligations, creates material operational risks, compromises the security of Company systems, provides misleading information, or otherwise acts in a manner that is inconsistent with the objectives of the program or the reasonable expectations of a professional commercial relationship.

To the maximum extent permitted by applicable law, the Company's aggregate liability arising out of or relating to the Customer Portfolio Program, any associated products or services, or any claim connected to these Terms and Conditions shall not exceed the total amount paid by the Customer to the Company during the twelve-month period immediately preceding the event giving rise to the claim, and under no circumstances shall the Company be liable for indirect, incidental, consequential, punitive, special, exemplary, or lost-profit damages, even if informed in advance of the possibility of such damages occurring.